

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 01/12/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01552

CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY

***HEARING ON MOTION IN RE: TO STAY THE ACTION PENDING DETERMINATION OF APPEAL FILED BY BNSF**

FILED BY:

TENTATIVE RULING:

Defendant BNSF Railway Company's motion for a stay is **denied**.

This case arises out of an accident at a railroad crossing. Decedent Joshua Schaefer was in a car driven by Kaylee Mello when her car got stuck on the railroad tracks and was subsequently hit by a train. Joshua died as a result of the accident. Joshua's parents filed separate lawsuits, which were consolidated.

In August 2025, the court granted the City of Oakley's motion for summary judgment. Plaintiff Ronny Schaefer appealed this ruling. Plaintiffs Melissa Welsh-Schaefer and Kaylee Mello did not appeal and the time to appeal has run. BNSF seeks a stay of the entire case pending the outcome of

the appeal on the Court's ruling on Oakley's motion for summary judgment.

“ '[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.' [Citation.] ... '[t]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.' ” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141.)

The majority of cases cited by moving party involved staying one action while another litigation proceeded. (See, *Adams v. Paul* (1995) 11 Cal.4th 583, 592-93, *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, and *Montrose Chemical Corp. v. Superior Court* (1993) 6 Cal.4th 287, 301.) In *Houghton v. Superior Court of Alameda County* (1922) 187 Cal. 661, the court found held that “a judgment which would be *res adjudicata* of matters involved in an action may be availed of during the pendency of an appeal from such judgment, either by a plea in abatement upon proof of which a judgment may be rendered that the action abate (*Connor v. Bank of Bakersfield*, 174 Cal. 400), or by a continuance of a second action until the result of the appeal has been determined”. Moving party has not cited a case similar to this one where one co-defendant prevailed on summary judgment and the trial court stayed the entire case pending appeal of the summary judgment motion. Still, the Court could, using its inherent power, grant a stay in this case.

BNSF argues that there is a high probability of inconsistent, multiple, and contradictory verdicts. BNSF argues that should Plaintiff prevail on its motion in limine one, precluding BNSF from arguing compared fault of the City, that would prejudice BNSF. BNSF also argues that it would be unfair to make BNSF go to trial alone when, if the appeal is successful, Oakley will then have to go to trial alone later. BNSF also argues that that expert discovery has not been completed and it would be best if all parties, including Oakley, were involved in expert discovery. Finally, BNSF argues that there is a risk of double recovery should the appeal prevail and Plaintiffs win trials against BNSF and Oakley.

Plaintiff Ronny Schaefer agrees that this case should be stayed. He argues that BNSF's motion for judgment on the pleadings should not be decided before the appeal of the granting of summary judgment as to Oakley. He also argues that he anticipates BNSF will try to exclude evidence presented in the opposition to Oakley's motion for summary judgment, which would be unfair to Plaintiff. Plaintiff is also concerned that if the appeal is successful, there would be two separate trials and a jury would not be able to apportion fault among Oakley and BNSF fairly. Finally, Plaintiff argues that if the appeal is granted, they would have to engage in costly expert discovery with Oakley after having already completed the expert discovery with BNSF.

Plaintiffs Melissa Welsh-Schaefer and Kaylee Mello oppose a stay. This case was filed in July 2022 and with a stay pending appeal, Plaintiffs argue that the trial would not take place within five years of filing the complaint (although the five-year statute for bringing a case to trial would be stayed if the Court entered a stay of the entire case). Plaintiffs argue that witness's memories will fade with time. Further, Plaintiffs argue that there will be inefficiency and injustice if a stay pending appeal is ordered in this case.

BNSF and Plaintiff Schaefer's reasons for requesting a stay are based primarily on the assumption that the Court's ruling on Oakley's motion for summary judgment was incorrect. The Court is not convinced that the moving or any other party has demonstrated a substantial likelihood

of prevailing on appeal such that a new trial would be required. In addition, BNSF and Schaefer's concerns about how the Court's ruling on Oakley's motion for summary judgment will affect the presentation of evidence at trial can be addressed by in motions in limine if appropriate and necessary. Further, a delay pending appeal will likely delay this case by possibly several years. Having considered all the arguments, the Court exercises its discretion and denies the request for a stay.

The clerk of the Court is directed to set the matter on the Case Management Conference (CMC) calendar for re-setting of the trial date and give notice of such date to all parties.

2. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

The hearing is continued to 9:00 a.m. on June 15, 2026, pursuant to the stipulation of the parties.

3. 9:00 AM CASE NUMBER: C23-01577
CASE NAME: APP FUNDING, LLC VS. GEORGE FRIE
***HEARING ON MOTION IN RE: ORDER TO AMEND DEFENDANTS' NAMES IN THE JUDGMENT**
FILED BY: APP FUNDING, LLC
TENTATIVE RULING:

Plaintiff and judgment creditor APP FUNDING, LLC ("Plaintiff") filed a Motion for Order to Amend Defendants' Names in the Judgment on October 30, 2025 (the "Motion to Amend Judgment"). The Motion to Amend Judgment was set for hearing on January 12, 2025.

Background

A sister-state Judgment was entered herein against the following defendants and judgment debtors (the "Defendants") on June 20, 2025 (the "Judgment"):

BE CLINICAL, INC. D/B/A BE CLINICAL
AEROHIVE NETWORKS, INC.
FIONA'S SWEETSHOPPE, CORP.
BE CLINICAL AESTHETICS AND WELLNESS, P.C.
BE CLINICAL HOLDINGS, INC.
FIGE, LLC
GEORGE W. FRIE

FIONA S. FRIE

The principal amount of the Judgment was \$219,865.28, with a total Judgment of \$232,203.12.

Plaintiff seeks to amend the names of the Defendants in the Judgment to add certain supplemental language (as indicated in bold face type below) pursuant to Code of Civil Procedure section 187:

BE CLINICAL, INC., D/B/A BE CLINICAL, **A CALIFORNIA CORPORATION**

AEROHIVE NETWORKS, INC., **A CALIFORNIA CORPORATION**

FIONA'S SWEETSHOPPE, CORP., **A CALIFORNIA CORPORATION**

BE CLINICAL AESTHETICS AND WELLNESS, P.C., **A CALIFORNIA CORPORATION**

BE CLINICAL HOLDINGS, INC., **A CALIFORNIA CORPORATION**

FIGE LLC, **A LIMITED LIABILITY COMPANY**

GEORGE W. FRIE, **INDIVIDUALLY**

FIONA S. FRIE, **INDIVIDUALLY**

Analysis

Code of Civil Procedure section 187 provides:

When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.

Code Civ. Proc. § 187.

The authority granted to a court under Section 187 includes the authority to amend a judgment to add an alter ego of an original judgment debtor, and thereby make the additional judgment debtor liable on the judgment. *Highland Springs Conference & Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 280 (“*Highland Springs*”). It also includes the authority to amend a judgment to “designate the real name of the judgment debtor.” *Thomson v. L. C. Roney & Co.* (1952) 112 Cal.App.2d 420, 425. The court is not required to hold an evidentiary hearing on a motion to amend a judgment, but may rule on the motion based solely on declarations and other written evidence. *Highland Springs, supra*, 244 Cal.App.4th at 280.

Plaintiff’s request is not based on any asserted alter ego liability. This is simply a matter of amending the Judgment to state the true name or alias of the judgment debtors by adding reference to the type of legal entity or their capacities as individual persons. Declaration of Steven Booska filed October 30, 2025, ¶12.

It is not clear why Plaintiff did not proceed by way of an Affidavit of Identity pursuant to Code of Civil Procedure section 680.135 and the applicable levy/garnishment provisions of the Enforcement of Judgments Law (EJL). See Code Civ. Proc. § 699.510 (“The writ of execution shall include the additional name or names, and the type of legal entity, by which the judgment debtor is known, as set forth in the affidavit of identity, as defined in Section 680.135, filed by the judgment creditor with the application for issuance of the writ of execution.”); see also Code Civ. Proc. § 680.135.

In any event, the Court has the authority to amend the Judgment to add the alias under Section 187 and Code of Civil Procedure sections 473(a)(1) and 473(d). See Code Civ. Proc. § 473(a)(1) (“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party...”) and 473(d) (“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”).

The Court finds that amending the Judgment to add the additional language regarding the type of legal entity or individual capacities of the named Defendants is just and appropriate and will facilitate the enforcement of the Judgment, without changing its scope or effect.

The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Motion to Amend Judgment is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**

FILED BY: LEONE, MISTY

TENTATIVE RULING:

This matter was continued by order of the Court at the Issue Conference held on January 8, 2025, as will be set forth in a forthcoming order of the Court.

5. 9:00 AM CASE NUMBER: C23-02039

CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON

HEARING IN RE: JOINDER TO RICKY D. HORTON MSJ

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Kevin Horton’s Joinder in Co-Defendant Ricky Dean Horton’s Motion for Summary Judgment.

Defendant’s joinder motion is **denied** as set forth below.

General Factual and Procedural Background

This matter pertains to a dispute regarding financing and title related to real property located at 3501 DiMaggio Way in Antioch, California (the “Property”).

On October 17, 2025, Defendant Ricky Horton filed his motion for summary judgment as to Plaintiff’s Old Republic’s complaint. The hearing on the motion was set for January 12, 2026. On December 12, 2025, Old Republic filed its opposition to the MSJ. On December 22, Defendant Freedom Mortgage filed its opposition to the MSJ. On December 23, 2025, Nationstar Mortgage and Lakeview Loan Servicing also filed an opposition to the MSJ.

On December 22, 2025, Defendant Ricky Horton filed the instant Notice of Joinder in Co-Defendant Ricky Dean Horton’s Motion for Summary Judgment.

Analysis

Kevin Horton’s joinder motion is deficient for several reasons. To begin with, Kevin Horton does not include an affidavit/declaration or any of his own evidence to support his motion. Nor does the joinder include a separate statement of material facts – as is required for a summary judgment motion.

Code of Civil Procedure section 437c states that a party moving for summary judgment or summary adjudication must support the motion with affidavits and other discovery material. (Cal Code Civ. Proc. § 437c (b).) It also indicates that the “supporting papers *shall* include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed.” (*Ibid.* emphasis added.)

“A moving party’s failure to comply with this requirement is, in the court’s discretion, proper grounds to deny the motion.” (*Frazer v. Seely* (2002) 95 Cal.App.4th 627, 636.) While a notice of joinder “may be sufficient for some purposes [cite], it is not sufficient for purposes of the summary judgment statute.” (*Ibid.*) “‘The language of the statute is clear.’ [cite] Each moving party *shall* support their motion for summary judgment with a separate statement.” (*Ibid.*)

In addition, the summary judgment statute requires that “[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Cal. Code Civ. Proc. § 437c (a)(1).) As noted above, Ricky Horton’s MSJ was scheduled for hearing on January 12, 2026. Kevin Horton did not file his Joinder motion until December 22, 2025 – a mere 21 days prior to the hearing. It is clear that “trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1262 quoting *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117.) If a joinder to a summary judgment motion is not timely filed and served within the deadlines provided by the summary judgment statute, it is error for a trial court to allow the joinder. (*Lerma v. County of Orange* (2004) 102 Cal.App.4th 709, 718-19.)

The Court also notes that neither of the Horton Defendants are attorneys. Kevin Horton appears to assert that his brother and co-defendant Ricky Horton is also acting as “counsel” for him and that he reserves his “right to have [Ricky Horton] assist me in all proceedings.

A non-attorney cannot represent another individual in legal proceedings – even if that person has a ‘power of attorney’ to allow such representation. (*People ex rel. Department of Public Works v. Malone* (1965) 232 Cal.App.2d 531, 536-37. See also *Campbell v. Jewish Committee for Personal Service* (1954) 125 Cal.App.2d 771, 722, “**not being a lawyer, Campbell cannot appear as an attorney for his brother.**” (emphasis added.)) “[I]t has been well settled that persons may represent their own interests in legal proceedings but may not ‘practice law [for another] in this State unless [they are] active member[s] of the state bar.’” (*Drake v. Superior Court* (1994) 21 Cal.App.4th 1826, 1830)

As such, each of the Horton Defendants is responsible for their own arguments and must file their own motions. At a minimum, they must file a single joint motion if both brothers are making the same arguments and relying on the same evidence.

Conclusion

Defendant Kevin Horton’s joinder motion is **denied**.

6. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
HEARING ON SUMMARY MOTION BY RICKY D. HORTON
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Ricky Dean Horton’s Motion for Summary Judgment (“MSJ”).

Defendant’s MSJ is **denied** as set forth below.

General Factual and Procedural Background

This matter pertains to a dispute regarding financing and title related to real property located at 3501 DiMaggio Way in Antioch, California (the “Property”).

In 2017, non-moving Defendant Kevin Horton obtained a loan secured by a Deed of Trust on the Property. It appears that in 2020, Kevin Horton applied for a new loan to refinance the Property. (UMF 1.) The new loan was allegedly obtained from Defendant Freedom Mortgage Corporation in the amount of \$326,574, the majority of which was intended to pay off the 2017 loan. (UMF 1-2.) The loan instructions specify: “Freedom Mortgage Corporation to Payoff Mortgage.” (*Ibid.*; Ricky Horton Ex. 1.)

On June 24, 2020, a new Deed of Trust was recorded indicating that Kevin Horton and Megan Lee Henderson (as joint tenants) obtained a loan from Freedom Mortgage in the amount of \$326,574 secured by the Property. (UMF 3.) Kevin Horton received correspondence from Freedom Mortgage confirming that 2017 mortgage was paid off and the 2017 Deed of Trust was cancelled. (UMF 5; Ricky Horton Ex. 3.)

In January 2023, a Grant Deed was recorded indicating that the Property was being transferred from Kevin Horton to Ricky Horton. (UMF 7.) Plaintiff Old Republic provided a title insurance policy to Ricky Horton in connection with this purchase. (*Ibid.*) As part of the process, Old Republic requested Ricky

Horton to provide copies of the 2017 cancelled note and Deed of Trust provided by Freedom Mortgage. (UMF 8.)

On August 17, 2023, Old Republic filed its complaint in this matter seeking declaratory and injunctive relief. The essence of Old Republic's complaint, explained in more detail below, is that Kevin Horton never obtained the loan from Freedom Mortgage in 2020, the 2017 loan was never actually satisfied, and the Deed of Trust indicating that such had occurred was recorded in error.

Ricky Dean Horton filed the instant MSJ on October 17, 2025. Old Republic filed its opposition on December 12, 2025. Freedom Mortgage Company filed an opposition on December 22, 2025. Nationstar Mortgage, LLC (dba Mr. Cooper) and Lakeview Servicing, LLC filed an opposition on December 23, 2025. The entity parties that filed oppositions will be referred to as the "Opposing Parties."

Standard of Review

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*) The plaintiff then has the burden of demonstrating that triable issues of material fact exist. (*Ibid.*)

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) "In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).)

Initial Consideration

Electronic Bookmarks

Defendant Ricky Horton's MSJ is accompanied by a declaration which attached eight exhibits spanning over 80 pages but fails to include bookmarks to each of the exhibits. "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Defendant Ricky Horton is reminded to comply with the Rules of Court going forward.

Analysis

The timeline of events outlined above is essentially not disputed by the Parties. The Opposing Parties,

however, indicate that it is not the full picture of what occurred. Instead, they contend that the 2020 refinance loan was never issued, and the 2017 loan was never satisfied.

Old Republic cites Freedom Mortgage's "Funding Request" document produced in discover which indicates that the 2020 loan was never finalized. (Brink Decl. ¶ 4, Ex. B.) The "Funding Request" states at the top: "VOIDED!! VOIDED!! VOIDED!! VOIDED!! VOIDED!!" (*Ibid.*) It also notes in the comments section: "Funding reversed – The loan cannot close" (*Ibid.*) The second page of the documents notes that the mortgage application was "Denied." (*Ibid.*)

Documents produced by Cross-Defendant Title Connect, Inc., which was the purported settlement agent for the 2020 loan that supposedly paid off the 2017 loan, indicate that the 2020 loan was withdrawn and unfunded due to "a UCC issue." (Brink Decl. ¶ 3, Ex. A at p.3.) The "UCC issue" relates to "additional signing language" added to the loan documents by Kevin Horton before signing. (*Ibid.*)

As noted by Freedom Mortgage, when Kevin Horton executed the Loan Application and Closing Disclosure he included additional language on the documents – referred to as "sovereign citizen language." (Tarver Decl. ¶ 11, Exs. D & E.) Specifically, next to the signature on each document Kevin Horton inserted the following: "UCC 1-207/1-308". Below is an example:

or obtain any information or data relating to the Loan, for any legitimate business purpose through any source, including a source named in this application or a consumer reporting agency.

Borrower's Signature X 	Date June 15 2020	Co-Borrower's Signature X	Date
Loan Originator's Signature X Matthew Joel Bell	UCC 1-207/1-308		Date 06/15/2020

Due to the addition of this language, the 2020 loan was cancelled, the 2017 loan was never paid off, and Kevin Horton was notified of the cancellation. (Tarver Decl. ¶ 12-14, Exs. F & G.) The Title Connect documents also indicate that both Kevin Horton and Ricky Horton were informed of this issue and told that the loan documents would need to be re-issued without the additional language. (Brink Decl. Ex. A at Bates 0012.)

Freedom Mortgage acknowledges that even though the 2020 loan was cancelled and the 2017 loan was not paid off, it mistakenly recorded the 2020 Deed of Trust with the Contra Costa County Recorder on June 24, 2020. (Tarver Decl. ¶ 15, Ex. E.) Freedom also mistakenly issued two letters to Kevin Horton stating that the 2017 loan had been paid off and sending him the 2017 Note and 2017 Deed of Trust. (*Id.* at ¶ 16, Ex. H.) The form letters and loan documents are automatically mailed to customers after refinancing and were mistakenly sent while Freedom's employees were determining whether the loan documents could be processed with the additional UCC language. (*Id.* ¶ 18, Ex. G.)

Freedom reached out to Kevin Horton on several occasions to explain the situation and request that he re-sign the loan documents without the additional UCC language. (Tarver Decl. ¶ 19-21, Ex. G & J.) On April 22, 2021, Freedom sent an official letter to Kevin Horton indicating that it "incorrectly advised [him] in an August 26, 2020 correspondence of your loan being paid in full and enclosed your original Note and original security instrument." (*Id.* at Ex. J.) Kevin Horton declined to re-sign the loan documents without the UCC language and failed to return the 2017 loan documents. (Tarver Decl. ¶ 21.)

In January 2022, Nationstar began servicing the 2017 Loan. (Tarver Decl. ¶ 23, Ex. K; Winchester Decl. ¶ 5, Exs. 4 & 5.) In March 2022, Kevin Horton sent a letter to Nationstar claiming that the 2017 loan had been refinanced and paid in full. (Winchester Decl. ¶ 7.) Nationstar responded with a detailed

letter explaining that the 2020 refinancing had been reversed and that the 2017 loan had not been paid off. (*Id.* at Ex. 7.) It also outlined the numerous communications with Mr. Horton in which this had been previously explained to him. (*Ibid.*)

On April 4, 2022, Nationstar sent a letter to Kevin Horton indicating that it intended to foreclose on the Property due to his failure to make payments as of February 1, 2022. (Winchester Decl. ¶ 8, Ex. 8.) At that time, the missed payments amounted to almost \$7,000. (*Ibid.*) The Opposing Party's evidence also appears to show that Mr. Horton had continued to make payments under the 2017 loan as late as January 14, 2022, when a payment of \$2,301.99 was made by check. (Brink Decl. ¶ 5, Ex. C.) This appears to show that Mr. Horton knew the 2017 loan had not been paid and was still in effect.

In addition to the above, Old Republic submits Requests for Admission ("RFA") propounded on Ricky Horton that were deemed admitted by the Court due to Ricky Horton's failure to respond to the Requests. (Brink Decl. Exs. D-E.) These RFAs include an admission that Kevin Horton did not personally pay off the 2017 loan (RFA 5), that Kevin Horton was advised by Freedom that the 2020 refinance application was denied (RFA 7), and that Ricky Horton knew in January of 2023 that the 2017 loan had not been paid off (RFA 15.)

The RFAs also include an admission that Ricky Horton "obtained a title policy from Old Republic in 2023 based upon the false claims that the 2017 Loan had been paid in full." (RFA 27.) Ricky Horton was also deemed to have admitted that prior to his purchase of the Property from Kevin Horton "a reconveyance was recorded, which formally cancelled the 2020 deed of trust." (RFA 19.) These clearly establish that Ricky Horton knew that the 2017 loan had not been paid and that the 2020 deed of trust was cancelled.

In his Reply, Mr. Horton raises for the first time two new theories as to why the Opposing Parties' arguments fail. Namely, he contends that (1) there must be some sort of fraud being perpetrated upon him or his property by the Opposing Parties, and/or (2) that Freedom is prohibited from reversing its decisions granting the 2020 loan application.

"The general rule of motion practice ... is that new evidence is not permitted with reply papers." (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228 quoting *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) This prohibition also applies to new legal theories and arguments. (*Ibid.*) New arguments raised for the first time in a reply brief are ordinarily disregarded "because such consideration would deprive the respondent of an opportunity to counter the argument." (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453.)

The *Maleti* court cited the Rutter Guide's warning with approval: "It is a serious mistake to leave key arguments for the reply brief ... [because] [t]he court is likely to *refuse to consider new evidence or arguments first raised in reply papers.*" (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022) ¶ 9:106.1, italics in original.)

As Mr. Horton did not raise these issues in his opening papers, the Court will not consider them.

All the above show that there are disputed material facts which preclude Defendant Ricky Horton from prevailing on his motion for summary judgment.

Conclusion

Ricky Horton's motion for summary judgment is **denied**.

7. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO JIHOON YOU
FILED BY: YANG, MICHAEL
TENTATIVE RULING:

See Line 8.

8. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO YONGCHAN PARK
FILED BY: YANG, MICHAEL
TENTATIVE RULING:

Before the Court is Defendant Michael Yang and Minhe, Inc. (collectively, “Defendants”)’s Motion for Judgment on the Pleadings (“MJOP”). The MJOP relates to Plaintiff Yongchan Park (“Plaintiff”)’s “Notice of Plaintiff/Respondent Yonchan Park’s Intent to Seek Additional Claims at Trial.”

Defendants purport to bring this motion pursuant to California Rule of Court § 3.1112 and Code of Civil Procedure § 439. Rule 3.1112 covers the required papers for motions and papers in support and CCP § 439 is the meet and confer statute. No reference is made in the motion to the actual statute authorizing judgment on the pleadings, Code of Civil Procedure § 438.

For the following reasons, the MJOP is **denied**.

Analysis

The instant case is an appeal of the Labor Commissioner’s ruling in WC-CM-761270, WC-CM-76127, and WC-CM-762296 pursuant to Labor Code § 98.2(a) by Defendants. (Labor Code § 98.2 “[P]arties may seek review by filing an appeal to the superior court, where the appeal shall be heard de novo”.) In response, Yongchan Park and Jihoon You filed notices of intent to seek additional claims at trial. In their notices, Park and You reasserted their wage claims they had raised before the Labor Commissioner and added new claims, including claims for minimum wages, overtime premium compensation, provision of unpaid meal periods, provision of paid rest periods, waiting time penalties, FLSA claims, violation of 18 USC § 1595, and violation of Labor Code § 970. (See Notice of Plaintiff/Respondent Yongchan Park’s Intent to Seek Additional Claims at Trial; see Notice of Plaintiff/Respondent Jihoon You’s Intent to Seek Additional Claims at Trial; see also *Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1120 (*Murphy*) [trial court has discretion to allow employee to raise additional claims in response to employer’s Berman appeal].)

In a recent opinion, the California Supreme Court reiterated that in the context of an appeal from a Berman hearing “the trial court may, in its “sound discretion,” allow an employee to raise additional claims that the Labor Commissioner did not consider during the administrative stage of the Berman process. (*Murphy, supra*, 40 Cal.4th at p. 1120; see *id.* at p. 1118 [“Trial courts are equipped to weigh the various considerations” associated with the possible addition of a claim, “e.g., whether the claims

are sufficiently related, whether the interests of judicial economy will be served, and whether the employer will be prejudiced”].)” (*Iloff v. LaPaille* (2025) 18 Cal. 5th 551, 569.)

By their motion, Defendants make several substantive challenges to Plaintiffs’ additional claims. However, Defendants have provided no authority, and the Court is not aware of any, that would permit treating a “Notice of Intent to Seek Additional Claims at Trial” as a pleading subject to Code of Civil Procedure § 438. Furthermore, as Plaintiffs note, the prerequisite requirement that “the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired” has not been met. (CCP §438(f)(2).)

The motion is **denied**.

9. 9:00 AM CASE NUMBER: C25-00144

CASE NAME: YONGCHAN PARK VS. MICHAEL YANG

HEARING ON SUMMARY MOTION FILED BY PLAINTIFF

FILED BY:

TENTATIVE RULING:

Plaintiff filed the instant motion on October 2, 2025. Initially, the hearing date was set for December 22, 2025 but was continued to January 12, 2026. In opposition, Defendants filed a Declaration of Richard D. Schramm as well as what purported to be memorandum of points and authorities in opposition (but was instead an opposition to Plaintiffs’ motion to compel further response to special interrogatories) on December 5, 2025. The Court is not in receipt of any other documents in opposition by Defendants. However, Plaintiff’s reply documents (such as a reply memorandum, response to Defendants’ separate statement of undisputed and disputed facts, as well as objections to evidence) suggest that additional documents in opposition were served on Plaintiff.

Parties are ordered to appear to discuss the briefing on the Motion for Summary Adjudication and a schedule for the hearing and the trial.

10. 9:00 AM CASE NUMBER: C25-00229

CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV

***HEARING ON MOTION IN RE: STAY**

FILED BY:

TENTATIVE RULING:

See line 11.

11. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
***HEARING ON MOTION IN RE: SUBSTITUTION OF PARTY FILED BY UMPQUA BANK, AN OREGON STATE-CHARTERED BANK.**
FILED BY:
TENTATIVE RULING:

At the hearing on November 03, 2024, this Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nickolai Popov on December 16, 2025.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

In the name of judicial efficiency, the Court is going to continue this hearing to March 16, 2026, at 9AM in this department, to ensure the Court substitutes the proper administrator of the Estate of Nickolai Popov.

12. 9:00 AM CASE NUMBER: MSC19-01794
CASE NAME: MURPHY VS LU
HEARING ON SUMMARY MOTION ON 2ND AMENDED CROSS-COMPLAINT
FILED BY: WEE, BILLY
TENTATIVE RULING:

Off calendar. This case has been transferred to D 32. The hearing will be reset in that department.

13. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION FILED BY: MBADIKE-OBIORA, MD, MAUREEN
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Maureen Mbadike-Obiora, MD's ("Plaintiff") motion for summary adjudication of her causes of action for breach of the Primary Care Provider Agreement and accounting. The Motion is opposed by Defendant Central East Bay IPA Medical Group, Inc. dba Muir Medical Group IPA, Defendant Kenneth Bowers, MD, Defendant Ute Burness, and Defendant Steven Kaplan, MD (collectively "Defendants"). Plaintiff moves for summary adjudication of her causes of action for breach of the primary care provider agreement and accounting.

The Court notes that this motion is being heard along with Defendants' cross-motion for summary

judgment or in the alternative summary adjudication. The Court has made an independent review and determination of this motion in reaching its conclusion. (See *Advent, Inc. v. Nat'l Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453 [“The fact that both parties moved for summary judgment does not conclusively establish the absence of a triable issue of fact; the trial court must independently determine the motions.”].)

For the following reasons, the motion is **denied**.

Legal Standard

A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).)

However, “[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

Analysis

Breach of the Primary Care Provider Agreement

Plaintiff moves for summary adjudication of her claim for breach of the Primary Care Provider Agreement on the grounds that it is undisputed that Muir IPA breached the agreement. Plaintiff argues that “[t]here is no dispute that Muir IPA’s, Ofelia Mynock, was not billing for these non-capitated services which are also known as ‘carve-outs’. (Declaration of Dr. Mbadike-Obiora.) ¶ Documents show that Muir IPA agreed with Dr. Mbadike-Obiora that she should be paid for these services. (Exhibit 14, Email Thread of October 19, 2015 from Alice Kugler to Ryan Altschuler and Ofelia Mynock.)” (Motion at 19:23-27.)

“Because summary judgment is defined by the material allegations in the pleadings, we first look to the pleadings to identify the elements of the causes of action for which relief is sought.” (*Baptist v. Robinson* (2006) 143 Cal.App.4th 151, 159.) Here, the Fifth Amended Complaint alleges that “[n]otwithstanding its obligations under the Primary Care Provider Agreement to reimburse Plaintiff for non-capitated services and procedures performed in the office, Defendant MMGIPA refused to pay Plaintiff or bill for in-office procedures provided Medicare Enrollees.” (5th AC at ¶ 79.)

Plaintiff's motion does not identify exactly which provisions of the Primary Care Provider Agreement are allegedly in breach and the connection with her cited evidence is unclear. Furthermore, Plaintiff fails to identify with specificity her damages in connection with the alleged breach of the Primary Care Provider Agreement. As Defendant notes, Plaintiff identified 10 office procedures for which she claims she was not compensated. (Cisz Decl. Ex. J [Plaintiff's Responses to Special Interrogatory Nos. 30, 32, and 33.]) However, she does not identify any dollar figure associated with those alleged breaches. (Cisz Decl. Ex. J (Responses to Special Interrogatory Nos. 30, 32, and 33) & Ex. H (Response to Form Interrogatory 50.2)). This is fatal to her cause of action for breach of the Primary Care Provider Agreement.

However, even assuming *arguendo* that Plaintiff met her initial burden with respect to this claim, the undisputed evidence demonstrates that Plaintiff waived any claim for breach of the Primary Care Provider Agreement under the Settlement Agreement in Case No. C18-02543, which also terminated the PCP Agreement by its own terms.

The Settlement specifically references the instant case, described as the "Obiora Action," and required that Plaintiff eliminate "the pending causes of action for declaratory relief against the IPA and Ute Burness and eliminates the following prayers for relief: (i) For declaratory judgment stating that the Physician Common Stock Subscription Agreement barred Defendant MMGIPA from terminating Plaintiff's relationship with JOHN MUIR, absent a written modification of the Agreement with the consent of both Plaintiff and MMGIPA; (ii) For declaratory judgment stating that the Plaintiff's PCP Exclusivity Agreement barred Defendant MMGIPA from terminating Plaintiff's Common Stock Shareholder Agreement by requiring that Plaintiff enter another exclusivity agreement with HILL when Plaintiff's PCP Exclusivity Agreement was still in effect; and (iii) For declaratory judgment stating that it was unreasonable and arbitrary for Defendants MMGIPA and UTE BURNESS to require that Plaintiff enter an exclusive PSA with HILL, which would require Plaintiff to leave BASS and turn over her billing services again to Defendants who had mismanaged Plaintiff's billing and were incapable of managing and billing services under a 2015 pilot program." (Settlement Agreement at § 1(D).)

Additionally, the Settlement Agreement included broad waiver and release language as well as a provision that except for the agreement and the agreements then alleged in the case "any and all agreements, understandings, rights, duties, or obligations between any of the Plaintiffs, on one hand, and any of the Defendants, on the other hand, as alleged in the Action are hereby terminated and are of no further force and effect." (Terms of the Agreement § 3.)

Notwithstanding this language, in the Fourth Amended Complaint filed on February 2, 2023, after executing the Settlement Agreement in Case No. C18-02543, Plaintiff added a claim for breach of the Provider Agreement. Plaintiff argues that Breach of the Primary Care Provider Agreement was included in the Third Amended Complaint (and therefore a surviving claim under the Settlement Agreement), relying on paragraph 37 and Exhibit 1 of the same. Paragraph 37 of the TAC reads in full:

On or about October 15, 2015, Plaintiff discovered that procedures she performed on capitation patients were not being reimbursed. Consequently, Plaintiff sent an email to DOE-1 Defendant UTE BURNESS, Defendant KENNETH BOWERS, MMGIPA Director of Practice Management, Alice Kugler, and, Steven Kaplan, MD, President and

Chairman of the Board of Directors of MMGIPA, stating as follows:

I am writing this email, to confirm the information that I received today from Ofelia that the IPA does not reimburse procedures for capped patients.

I clearly remember when lectures were arranged with Specialists, Dermatologist, Podiatrist, Orthopedist and we were encouraged to perform dermatological procedures, treat ingrown toe nails, and give joint injections. It has just come to my attention that I am not being reimbursed for all the procedures I have performed for capped patients for the last 1 year.

I did not receive any documentation that states we should not perform these procedures. As a sole proprietor, the write offs are a colossal loss not to mention the issue I have had with billing and cash flow since going on to Epic.

These losses need to be addressed and a communique sent out as I am sure there are other providers still performing procedures on capped patients.

Thank you for your anticipated cooperation in this matter.

(Exhibit 9, Plaintiff's October 15, 2015 Email to Ute Bumess.)

Although the Provider Agreement is attached to the Third Amended Complaint, it is only briefly referenced: first, in the factual background to state that she executed the agreement in connection with her purchase of a clinic in Contra Costa County from Dr. Wolf, a shareholder of MMGIPA. (TAC at ¶ 8.) Next, to state that she was terminated under that Agreement on January 2, 2018. (*Id.* at ¶ 55.) Nowhere in the TAC does she allege breach of the Primary Care Provider Agreement. This is alleged for the first time in the Fourth Amended Complaint as a separate cause of action for Breach of Contract [Primary Care Provider Agreement]. As a consequence, at the time Plaintiff executed the Settlement Agreement, Plaintiff did not have a pending cause of action for breach of contract of the Primary Care Provider Agreement. Furthermore, the terms of the Settlement agreement clearly terminated the Primary Care Provider Agreement.

Plaintiff is not entitled to summary adjudication of her claim for breach of the Primary Care Provider Agreement.

Accounting

Plaintiff moves for summary adjudication on her cause of action for accounting on the grounds that she and Muir-IPA were in a relationship that required an accounting and there is a balance due for her billing that can only be ascertained by an accounting.

Plaintiff relies on *Teselle v. McLaughlin* and *Sass v. Cohen* for her argument that there is a relationship between herself and IPA that requires an accounting. (See Motion at 9:3-19 [citing *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179 and *Sass v. Cohen* (2020) 10 Cal.5th 861].)

The equitable accounting claim in *Teselle* arose from "the possession by the defendant of money or property which, because of the defendant's relationship with the plaintiff, the defendant is obliged to surrender. [Citation.]" (*Teselle, supra*, at pp. 179-180.) "An action for accounting is not available

where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation. [Citation.]” (*Id.* at p. 179.) The *Teselle* court further observed that “[a]n accounting is a ‘species of disclosure, predicated upon the plaintiff’s legal inability to determine how much money, if any, is due.’” (*Id.* at p. 180.)

Teselle requires circumstances in which one party, by virtue of a special relationship with the other, has come into possession of money or property that she or he is required to surrender to the latter.

Plaintiff has not met her initial burden to show that Defendant is in possession of her money or property such that she would be entitled to an equitable accounting. Plaintiff has not adduced any evidence that Defendants owe her money. “In an action for an accounting, the agent has the burden of proving that he paid to the principal or otherwise properly disposed of the money or other thing which he is proved to have received for the principal.” (*Kennard v. Glick* (1960) 183 Cal.App.2d 246, 251.) The absence of evidence in support of Plaintiff’s contention that she is owed a balance is reflected in her discovery responses. (See (Cisz Decl., Ex. I (Responses to Special Interrogatory Nos. 1 and 20).)

Plaintiff is not entitled to summary adjudication of her claim for an accounting.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

14. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION HEARING ON SUMMARY MOTION FILED BY: CENTRAL EAST BAY
IPA, MEDICAL GROUP INC
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Central East Bay IPA Medical Group, Inc. dba Muir Medical Group IPA, Defendant Kenneth Bowers, MD, Defendant Ute Burness, and Defendant Steven Kaplan, MD (collectively “Defendants”)’s motion for summary judgment, or in the alternative summary adjudication. The motion relates to Plaintiff Maureen Mbadike-Obiora, MD (“Plaintiff”)’s Fifth Amended Complaint (“5th AC”) for (1) breach of contract (medical billing services agreement) (against IPA and Burness); (2) breach of contract (primary care provider agreement) (against IPA); (3) accounting (against IPA and Burness); (6) breach of implied covenant of good faith and fair dealing (against IPA and Burness); (7) intentional and negligent representation (against IPA and Kaplan); and (8) declaratory relief (against Burness and Bowers).

For the following reasons, Defendants’ motion for summary judgment is **granted**.

Legal Standard

Code of Civil Procedure (“CCP”) §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant’s initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Factual and Procedural Background

Plaintiff Maureen Mbadike-Obiora, MD is a family practice physician with a clinic in Concord. Plaintiff was shareholder of Defendant Central East Bay IPA Medical Group, dba Muir Medical Group IPA (Muir IPA). Defendant Kenneth Bowers is a member of the Board of Directors of Muir IPA and Defendant Ute Burness is the Chief Executive Officer of Muir IPA.

On or about October 9, 2008, Plaintiff purchased a clinic in Contra Costa County from Dr. Bernard Wolf, a shareholder of Muir IPA. Along with the purchase, Plaintiff executed a Primary Care Provider Agreement, Common Stock Shareholder Agreement, Common Stock Subscription Agreement, and a Participating Care Physician Exclusivity Agreement with Muir IPA. Plaintiff also purchased a share of Muir IPA.

On or about May 9, 2014, Muir IPA chose Plaintiff for a pilot billing services program. Plaintiff alleges that under the pilot program, she was unable to generate sufficient revenue to operate her office and pay herself a salary. Plaintiff complained about the low revenue and requested monthly accounting statements. On or about October 15, 2015, Plaintiff alleges she discovered she was not being reimbursed for procedures performed on capitation patients over the past year. The Court understands that capitation is a payment arrangement for health care service providers that pays a fixed amount of money per patient per unit of time paid in advance to the physician (or medical group) for the delivery of health care services.

Plaintiff filed the Third Amended Complaint on August 24, 2020. On May 11, 2022, Plaintiff filed a one-paragraph Amendment to Complaint to substitute Alice Kugler as Doe 2.

This Court sustained Defendant Alice Kugler's demurrer to the Third Amended Complaint, which alleged claims against her for declaratory relief, breach of the implied covenant of good faith and fair dealing, and breach of fiduciary duty. With respect to the declaratory relief claim, the Court found that Plaintiff had not alleged specific factual allegations against Defendant Kugler that demonstrated an actual controversy between Plaintiff and Kugler. With respect to the breach of the implied covenant claim, the Court concluded that Plaintiff had not alleged the existence of a contract between Plaintiff and Kugler or any contract that Kugler is a party to. Finally, with respect to the breach of fiduciary duty claim, the Court concluded that Plaintiff had not alleged facts showing a fiduciary duty either imposed by law or undertaken by agreement.

The Fourth Amended Complaint included new claims against Defendant Kugler for (1) breach of contract, (2) accounting, and (5) intentional and negligent misrepresentation in addition to revised versions of the previously alleged claims for (3) breach of fiduciary duty, (4) breach of the implied covenant of good faith and fair dealing, and (6) declaratory relief.

The Court granted Defendants' motion to strike Plaintiff's causes of action for (1) breach of contract, (2) accounting, and (5) intentional and negligent misrepresentation as well as the prayer for relief at Item II and Item III from the Fourth Amended Complaint for being beyond the scope of the Court's prior order. At the same time, the Court sustained Defendants' demurrer to the causes of action for (3) breach of fiduciary duty, (4) breach of the implied covenant of good faith and fair dealing, and (6) declaratory relief.

Plaintiff filed the Fifth Amended Complaint October 19, 2023. Defendants filed a Demurrer to that Complaint.

In an order after hearing filed February 27, 2024, the Court sustained-in-part and overruled-in-part Defendants demurrer to Plaintiff's 5th Amended Complaint. The Court sustained without leave to amend Defendants' demurrer to the fourth cause of action for breach of fiduciary duty, the fifth cause of action for aiding and abetting breach of fiduciary duty, Defendant Kugler's demurrer to the sixth cause of action for breach of implied covenant of good faith and fair dealing, Defendant Kugler's demurrer to the seventh cause of action for intentional and negligent misrepresentation, and Defendant Kugler's demurrer to the eighth cause of action for declaratory relief. As a consequence, no substantive claims remained against Kugler.

Analysis

(1) breach of contract (medical billing services agreement) (against IPA and Burness)

"A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 402 citing *CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

Defendants argue that there is no triable issue of fact over the existence of a written contract

because a written contract does not exist.

Plaintiff's first cause of action against IPA and Burness alleges that "Plaintiff entered into a written agreement with Defendants MMGIPA and Ute Burness (Doe 1) to participate in a pilot program whereby Defendants would submit Plaintiff's medical billing claims on patients to insurance companies and/or their clearing houses for processing, including all secondary and tertiary claims, and collect outstanding billing balances from patients." (5thAC at ¶ 65.)

Defendants offer the testimony of several witnesses who stated that they had no knowledge regarding any written billing services agreement with Plaintiff. To wit, Ofelia Mynock, who worked for the IPA and provided billing services to Plaintiff, testified that she did not recall having seen any written agreements between Dr. Obiora and the IPA about billing services. (Mynock Depo. at 243:2-9.) Kenneth Bowers also testified that he did not sign a written contract to have the billing services people take on his billing and submit it to Epic. (Bowers Depo. at 69:9-16.) Additionally, Ute Burness offered testimony that he is not aware of any written contract or agreement between IPA and Plaintiff or himself and Plaintiff regarding any medical billing services that he or IPA would provide Plaintiff. (Burness Decl. at ¶¶ 4,5.) Defendants have met their initial burden in establishing there is no issue of triable fact because no written contract exists, and the burden now shifts to Plaintiff to provide sufficient facts and evidence that there is a dispute as to a material fact as to the existence of a written contract.

The Court notes that while the opposition and reply reference a Mbadike-Obiora Declaration, said declaration is neither in the exhibits in support of Plaintiff's Opposition to Defendants' Motion nor does it otherwise appear in the Court file. However, as best the Court is able to discern its content from Plaintiff's separate responding statement of material facts in opposition, Plaintiff's memorandum of points and authorities in opposition, and Defendants' reply in support of their motion, it would be inadequate to establish a written contract for billing services. The same is true with respect to Plaintiff's declaration in support of her own motion for summary judgment. Therein, Plaintiff declares that "[o]n or about January 14, 2025 [sic], Alice Kugler and Heather Martin, both employees of Central East Bay IPA Medical Group, Inc. dba Muir IPA came to my office with the billing services agreement for the third-party billing program Muir IPA was setting up. Alice Kugler had me sign the pilot billing services agreement and told me that a copy of the fully executed agreement will be sent to me after Muir IPA's CEO Ute Burness ha[d] signed the agreement, but the agreement was never sent to me." (Mbadike-Obiora Decl. in support of Plaintiff's Motion for Summary Judgment at ¶¶ 4,5.) This is also consistent with Plaintiff's deposition testimony. (See Mbadike-Obiora Depo. at 77:4-10 [testifying that she signed a written agreement]; and 77:15-22 [Heather Martin and Alice Kugler "brought documents to me that I signed."].)

However, recent testimony by Alice Kugler refutes Plaintiff's assertion. Ms. Kugler testified that she did not take any agreement with her for Dr. Obiora to sign when she went to see her with Heather Martin and that IPA did not prepare any documents for the billing program for the doctors to sign. (See Kugler Depo. at 56:14-21.) (Although this evidence was provided on reply, the court has discretion to consider it. (See *Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal.App.5th 480, 499 ["A trial court has discretion to consider new evidence in reply papers supporting a summary judgment motion as long as the opposing party has notice and an opportunity

to respond. [Citation.] Evidence which is used to fill gaps in the original evidence created by the opposition is particularly appropriate to consider in a reply.”)) Plaintiff had notice of Defendants’ reply evidence more than a week before the originally scheduled hearing.)

Plaintiff’s affirmative evidence in support of her allegation that she executed a written billing agreement does not create a genuine dispute of material fact with respect to this issue. First, she presents a letter dated November 16, 2015 from Alice Kugler and the Muir Medical Group IPA Inc. The letter states in part “[t]his letter is to ensure that we are in complete understanding of the IPA’s obligation to you in reference to billing” and continues “we have agreed to continue to work your outstanding accounts receivables (AR) attained through October 31, 2015, for a period of 90 days ending January 31, 2016.” The Court understands Plaintiff’s argument to be that the word “agreed” is an oblique reference to a written agreement. The Court cannot agree.

Plaintiff also relies on the “Addendum For NextGen® Enterprise Chart” dated September 28, 2009 but Plaintiff’s argument as to how this agreement evinces the Pilot Billing Contract she alleges she executed in 2015 is attenuated. Essentially, Plaintiff argues that it was custom and practice “whereby the IPA would first obtain Dr. Mbadike-Obiora’s signature before Ute Burness ha[d] executed the agreement, and often never send the fully executed agreement to Dr. Mbadike-Obiora.” (Opp. at 13:7-9.) Even assuming *arguendo* that this was the standard practice between the parties, this does not create a genuine dispute of material fact as to whether there was a written billing agreement.

Based on the evidence and arguments provided by Plaintiff, Plaintiff does not meet her burden to show there is a triable issue of fact as to whether there was a written contract. Plaintiff’s opposition and exhibits submitted raise at best a triable issue of fact as to whether there was an oral contract. However, the problem with the existence of an oral contract is that Plaintiff does not plead the existence of an oral contract in the Fifth Amended Complaint, and an action here on an oral contract is time barred—the 5th AC alleges that the breaches occurred in 2015 (see 5th AC at ¶ 69 [breach beginning on or about March 15, 2015], the latest breach Plaintiff identifies in her discovery responses is 2015 (Plaintiff’s Supplemental Form Interrogatory No. 50.2 Response), and the statute of limitations for breach of an oral contract is 2 years. (CCP § 339(1).)

Because the Court concludes that there is no genuine dispute of material fact that there is a written contract (and because an oral contract is both unpled and time-barred) the Court need not reach the additional ground that Plaintiff cannot establish damages.

Defendants are entitled to summary adjudication of Plaintiff’s claim for breach of medical billing services agreement.

(2) breach of contract (primary care provider agreement) (against IPA)

Defendants move for summary judgment on Plaintiff’s claim for breach of the Primary Care Provider Agreement on the grounds that (1) Plaintiff waived and released all contract claims against the IPA other than the alleged Billing Contract claim alleged in her Third Amended Complaint and (2) the claim is otherwise not allowed under the terms of the Primary Care Provider Agreement.

In opposition, Plaintiff argues that her claim for Breach of the Primary Care Provider Agreement was pled in her Third Amended Complaint and therefore excluded from the settlement and release in C18-

02543 and that Defendants failed to allege waiver in their answer as an affirmative defense.

As a threshold issue, Defendants are not precluded from asserting waiver as a basis for summary judgment. “[C]ourts generally have allowed an affirmative defense to be asserted for the first time in a motion for summary judgment absent a showing of prejudice.” (*Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, 1341.) There is no showing of prejudice here.

Defendants’ waiver argument is based on a settlement in Case Number MSC18-02543. (Cisz Decl. Ex. K.) The Settlement specifically references the instant case, described as the “Obiora Action,” and required that Plaintiff eliminate “the pending causes of action for declaratory relief against the IPA and Ute Burness and eliminates the following prayers for relief: (i) For declaratory judgment stating that the Physician Common Stock Subscription Agreement barred Defendant MMGIPA from terminating Plaintiff’s relationship with JOHN MUIR, absent a written modification of the Agreement with the consent of both Plaintiff and MMGIPA; (ii) For declaratory judgment stating that the Plaintiff’s PCP Exclusivity Agreement barred Defendant MMGIPA from terminating Plaintiff’s Common Stock Shareholder Agreement by requiring that Plaintiff enter another exclusivity agreement with HILL when Plaintiff’s PCP Exclusivity Agreement was still in effect; and (iii) For declaratory judgment stating that it was unreasonable and arbitrary for Defendants MMGIPA and UTE BURNESS to require that Plaintiff enter an exclusive PSA with HILL, which would require Plaintiff to leave BASS and turn over her billing services again to Defendants who had mismanaged Plaintiff’s billing and were incapable of managing and billing services under a 2015 pilot program.” (Settlement Agreement at § 1(D).)

Additionally, the Settlement Agreement included broad waiver and release language:

4. Mutual Release of all Claims.

A. Definition of Claims. For purposes of this Section 4, "Claims" shall mean any and all past, present and future rights, claims, demands, duties, obligations, causes of action, injuries, damages, losses, actions, costs, commissions, attorneys' fees, license fees, loss of services, loss of opportunity, expenses and compensation, whether known or unknown, whether at law, equity, or otherwise, and whether sounding in tort, contract, or otherwise, howsoever arising out of or related to the facts and circumstances of the First Amended Complaint in the Action. **For purposes of this Section 4, claims remaining in the Obiora Action after the dismissal of the Declaratory Relief claim and Prayers for Relief, as set forth in Section 1.D., above, are excepted from the definition of Claims.**

B. Release of Defendants and Defendant-Related Parties. Except for the rights and obligations set forth in, created by, or reserved by this Agreement, as of the Effective Date, Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, hereby release and forever discharge the Defendants and Defendant-Related Parties, from any and all Claims (the "Items Released by Plaintiffs and Plaintiff-Related Parties").

Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, certify that they have read California Civil Code Section 1542, which states as follows:

A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE

CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY.

Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, hereby waive the application of California Civil Code Section 1542. Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, acknowledge that they understand the significance and consequence of this waiver of Section 1542 of the California Civil Code is that even if they should eventually suffer additional damages based on facts or incidents arising out of or related to the Items Released by Plaintiffs, they will not be permitted to make any claim for those damages. Further, Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, acknowledge that they intend these consequences even as to claims that may exist as of the Effective Date of this Agreement but which they do not know exist, and which, if known, would materially affect their decision to execute this Agreement, regardless of whether the lack of knowledge is the result of ignorance, oversight, error, negligence, or any other cause.

Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, represent and warrant that none of them have any Claims pending against any of the Defendants or Defendant-Related Parties, other than those pending in the Action and the Obiora Action, whether in any court, agency, arbitration, or other proceeding of any kind. Except with respect to the interpretation or enforcement of this Agreement, Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, hereby covenant, that they will not, at any time hereafter, either directly or indirectly initiate, assign, maintain or prosecute, or in any way aid or assist in the initiation, maintenance or prosecution of any Claims against the Defendants or Defendant-Related Parties, unless obligated to do so by a valid subpoena or order of any judge or arbitrator.

(Cisz Decl. at ¶ 14, Ex. K § 4 [emphasis added].)

The Settlement Agreement also includes a provision that except for the agreement and the agreements then alleged in the case “any and all agreements, understandings, rights, duties, or obligations between any of the Plaintiffs, on one hand, and any of the Defendants, on the other hand, as alleged in the Action are hereby terminated and are of no further force and effect.” (Terms of the Agreement § 3.)

Notwithstanding this language, in the Fourth Amended Complaint filed on February 2, 2023, after executing the Settlement Agreement in Case No. C18-02543, Plaintiff added a claim for breach of the Provider Agreement. Plaintiff argues that Breach of the Primary Care Provider Agreement was included in the Third Amended Complaint (and therefore a surviving claim under the Settlement Agreement), relying on paragraph 37 and Exhibit 1 of the same. Paragraph 37 of the TAC reads in full:

On or about October 15, 2015, Plaintiff discovered that procedures she performed on capitation patients were not being reimbursed. Consequently, Plaintiff sent an email to DOE-1 Defendant UTE BURNES, Defendant KENNETH BOWERS, MMGIPA Director of Practice Management, Alice Kugler, and, Steven Kaplan, MD, President and

Chairman of the Board of Directors of MMGIPA, stating as follows:

I am writing this email, to confirm the information that I received today from Ofelia that the IPA does not reimburse procedures for capped patients.

I clearly remember when lectures were arranged with Specialists, Dermatologist, Podiatrist, Orthopedist and we were encouraged to perform dermatological procedures, treat ingrown toe nails, and give joint injections. It has just come to my attention that I am not being reimbursed for all the procedures I have performed for capped patients for the last 1 year.

I did not receive any documentation that states we should not perform these procedures. As a sole proprietor, the write offs are a colossal loss not to mention the issue I have had with billing and cash flow since going on to Epic.

These losses need to be addressed and a communique sent out as I am sure there are other providers still performing procedures on capped patients.

Thank you for your anticipated cooperation in this matter.

(Exhibit 9, Plaintiff's October 15, 2015 Email to Ute Bumess.)

Although the Provider Agreement is attached to the Third Amended Complaint, it is only briefly referenced: first, in the factual background to state that she executed the agreement in connection with her purchase of a clinic in Contra Costa County from Dr. Wolf, a shareholder of MMGIPA. (TAC at ¶ 8.) Next, to state that she was terminated under that Agreement on January 2, 2018. (*Id.* at ¶ 55.) Nowhere in the TAC does she allege breach of the Primary Care Provider Agreement. This is alleged for the first time in the Fourth Amended Complaint as a separate cause of action for Breach of Contract [Primary Care Provider Agreement]. As a consequence, at the time Plaintiff executed the Settlement Agreement, Plaintiff did not have a pending cause of action for breach of contract of the Primary Care Provider Agreement. Furthermore, the terms of the Settlement Agreement clearly terminated the Primary Care Provider Agreement.

Defendants are entitled to summary adjudication of Plaintiff's claim for breach of the Primary Care Provider Agreement.

(3) accounting (against IPA and Burness)

Defendants argue that Plaintiff's accounting claim is barred because her breach of contract claims fail and would otherwise be time-barred. In opposition, Plaintiff argues that her cause of action for accounting is an independent action subject to a four-year statute of limitation, relying on this Court's order Sustaining in Part and Denying in Part Defendants' Demurrer to the Second Amended Complaint. Plaintiff argues that "the law of the case is that an accounting is an independent equitable claim that does not require breach of contract, which is a claim at law, to be viable, and the applicable statute of limitation on an accounting claim is four years." (Opp. at 28:7-11.)

Plaintiff misunderstands both the law of the case doctrine and this Court's prior order. "The doctrine of 'law of the case' deals with the effect of the *first appellate decision* on the subsequent *retrial or*

appeal: The decision of an appellate court, stating a rule of law necessary to the decision of the case, conclusively establishes that rule and makes it determinative of the rights of the same parties in any subsequent retrial or appeal in the same case. (*Morohoshi v. Pac. Home* (2004) 34 Cal.4th 482, 491 [quoting 9 Witkin, Cal. Procedure (4th ed. 1997) Appeal, § 895, p. 928] [emphasis original].) “Law of the case” does not apply to prior demurrer orders by the trial court.

Furthermore, while the Court may have concluded in its prior order that, under *Teselle v. McLoughlin*, a cause of action for an accounting does not necessarily require a contract for a valid accounting claim, on this motion Defendants have introduced Plaintiff’s discovery responses which support a conclusion that here, her claim for accounting is ancillary to her claims for breach of contract.

Specifically, when Plaintiff’s response to special interrogatory no. 32 is read in conjunction with her response to form interrogatory no. 50.2, it is clear that her claim for accounting is based on her breach of contract claims. Form interrogatory no. 50.2 asked “was there a breach of any agreement alleged in the pleadings? If so, for each breach describe and give the date of every act or omission that you claim is the breach of the agreement.” Special interrogatory no. 32 then asks “for each service or procedure stated in your response to form interrogatory no. 50.2, state the total amount of payment you contend you should have received, and describe all facts in support.” Plaintiff responded in full: “on advice of counsel, Plaintiff is unable to state the total amount of payment she should have received as said information is not in her possession, custody or control at this time and **forms the basis of her claim for accounting.**” (emphasis added.)

Because Plaintiff’s breach of contract claims fail (as described further, above) Defendants are also entitled to summary adjudication of Plaintiff’s claim for accounting.

(6) breach of implied covenant of good faith and fair dealing (against IPA and Burness)

Based on the foregoing, the Court also finds that Defendants are entitled to summary judgment on Plaintiff’s cause of action for breach of the implied covenant of good faith and fair dealing. “The prerequisite for any action for breach of the implied covenant of good faith and fair dealing is the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract.” (*Green Valley Landowners Ass’n v. City of Vallejo* (2015) 241 Cal.App.4th 425, 433.) In the absence of a written contract for billing services (and because an oral contract is both unpled and time-barred), and the termination of the Primary Care Provider Agreement under the terms of the Settlement Agreement in case no. MSC18-02543, there is no covenant of good faith and fair dealing between the parties. Defendants are entitled to summary adjudication on this claim.

(7) intentional and negligent representation (against IPA and Kaplan)

Defendants move for summary adjudication against Plaintiff’s claim for intentional and negligent representation on several grounds, including that Plaintiff cannot establish the required elements and that the claim is time-barred. Plaintiff does not respond substantively to these arguments. Instead, Plaintiff argues that Defendant Bowers and Kaplan are no longer parties in this action.

Where a party fails to respond to an argument in an opposition with citations to legal authority, such failure to respond is deemed a concession. (*Heglin v. F.C.B.A. Market* (1945) 70 Cal.App.2d 803, 806; see also *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party

fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground[.]

Furthermore, Defendant Bowers and Defendant Kaplan answered the Fifth Amended Complaint on March 14, 2024. While Defendant IPA and Ms. Burness filed an amended answer following a motion for leave to amend this did not have the legal effect of extinguishing Defendant Bowers and Defendant Kaplan’s answer. (The Court also notes that Plaintiff requested default as to both Defendant Bowers and Kaplan which was rejected with the stated reason that “Default cannot be entered on Defendant as an Answer was Filed 03/14/24.”)

Defendants are entitled to summary adjudication on Plaintiff’s claim for intentional and negligent representation.

(8) declaratory relief (against Burness and Bowers)

Finally, Defendants move for summary adjudication on Plaintiff’s claim for declaratory relief on several grounds: first, to the extent that Plaintiff is seeking a declaration that Dr. Bowers violated his fiduciary duties to Plaintiff this is precluded by the loss of Plaintiff’s breach of fiduciary duty claim; second, to the extent Plaintiff seeks a declaration that she entered into a billing services agreement, it is undisputed that there is no written billing services contract.

In opposition, Plaintiff argues that “Defendant Kenneth Bowers has no standing to bring a motion for summary judgment or summary adjudication on the declaratory relief cause of action because he is no longer a party to this action” and “Defendant Ute Burness cannot establish that there is no triable issue of fact that she entered into a contract with Dr. Mbadike Obiora when she claims she has no recollection of the event.” (Opp. at 32:11-14 and 32:19-22.)

These arguments are not substantively responsive to Defendants’ moving arguments. Furthermore, Plaintiff is incorrect that Defendant Bowers is no longer a party to this action.

Defendants are entitled to summary adjudication on Plaintiff’s declaratory relief claim.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

15. 9:00 AM CASE NUMBER: MSC21-02266
CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.
HEARING ON DEMURRER TO: PLAINTIFF LAURA WITTENBERG'S 4TH AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant East Bay Municipal Utility District’s Demurrer to Plaintiff Laura Wittenberg’s Fourth Amended Complaint is **sustained without leave to amend**.

I. Background

Plaintiff Laura Wittenberg owns property located at 7 Mariposa Lane in Orinda, California. On November 3, 2021, Plaintiff filed her original complaint against Hacienda Homes, Inc. dba Roads of Hacienda (“Hacienda”) alleging that her property sustained significant damage due to Hacienda’s drainage system and retaining wall. Plaintiff also alleged that an East Bay Municipal Utility District (“EBMUD”) water main break outside her property and adjacent to Hacienda’s retaining wall caused water to enter her property.

On December 30, 2019, Plaintiff submitted a government claim to EBMUD arising from the alleged water main break. (Messrobian Decl., Ex. G.) Plaintiff filed her original complaint against Hacienda only, asserting causes of action based on alleged drainage and retaining wall failures. Although Plaintiff referenced the EBMUD water main break in her pleading, she did not name EBMUD as a defendant at that time.

On November 5, 2022, Plaintiff filed a Second Amended Complaint (“2AC”) against Hacienda, again alleging damage caused in part by the water main break, but still did not name EBMUD as a defendant. On December 12, 2022, Plaintiff filed a Doe amendment to the 2AC identifying EBMUD as Doe 1. Plaintiff thereafter dismissed EBMUD from the action without prejudice.

On November 8, 2024, Plaintiff filed a Third Amended Complaint (“3AC”) against Hacienda and named EBMUD as a defendant in place of Doe 1. EBMUD demurred to the 3AC, and the court sustained EBMUD’s demurrer with leave to amend. Plaintiff thereafter filed her Fourth Amended Complaint (“4AC”) on June 25, 2025.

The 4AC asserts a ninth cause of action for negligence against EBMUD. Plaintiff alleges that she filed a government claim arising from the 2019 water main break and EBMUD closed its file on the claim without notice to her. (4AC ¶¶ 86–88.) Plaintiff alleges that EBMUD had a duty to investigate her claim for the purpose of compensating her for the damage EBMUD’s infrastructure allegedly caused, and that EBMUD is liable based on its alleged failure to investigate the claim or pay for damage to her property. (4AC ¶¶ 87–88.) That is, Plaintiff seeks to impose liability on EBMUD based on its alleged failure to investigate, process, or pay her government claim, rather than on any negligent conduct causing in the water damage.

EBMUD now demurs to the Ninth Cause of Action in the Fourth Amended Complaint. Plaintiff filed her opposition to the demurrer on November 3, 2025, and EBMUD filed its reply on November 7, 2025.

II. Legal Standard

A demurrer tests the sufficiency of a complaint by raising questions of law. (See *Seidler v. Municipal Ct.* (1993) 12 Cal.App.4th 1229, 1233.) It challenges defects that appear on the face of the complaint, or from matters outside the complaint that are judicially noticeable. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

A plaintiff cannot survive a demurrer unless he has “pleaded facts sufficient to establish every element of that cause of action.” (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879–880.) Material facts are deemed true for purposes of a demurrer. However, contentions, deductions, or

conclusions of fact or law are not deemed true. (See *Quan v. Truck Ins. Exch.* (1998) 67 Cal.App.4th 583, 589.)

A public entity is not liable for an injury except as provided by statute and a plaintiff must plead with particularity every fact essential to statutory liability. (Gov. Code, § 815 (a); *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1179; *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.)

III. Analysis

A. Meet and Confer

The parties' counsel met and conferred via telephone and email regarding the sufficiency of Plaintiff's pleading in compliance with Code of Civil Procedure section 430.41. Despite these efforts, the parties were not able to resolve the issues raised in this demurrer. (Messrobian Decl., ¶ 11.)

B. Plaintiff Fails to Plead a Duty of Care

Under Government Code section 815, subdivision (a), all liability claims against a public entity must be based on statute. Thus, direct liability for common law claims is not permissible against a public entity. (*Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 986.) As to public employees, section 820 provides that "[e]xcept as otherwise provided by statute . . . a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov. Code, § 820.) Thus, absent a specific immunity, the "general rule is that an employee of a public entity is liable for his torts to the same extent as a private person and the public entity is vicariously liable for any injury which its employee causes to the same extent as a private employer." (*San Mateo Union High Sch. Dist.*, 213 Cal.App.4th at pp. 432–33.)

Plaintiff argues and alleges EBMUD itself owed a duty of care to Plaintiff to investigate her claim, obtain adequate documentation of her claim, maintain records for her claim, and provide reasonable communication and correspondence regarding the status of the claim for the ultimate purposes of compensating Plaintiff for her losses. (Opp Brf., 3:7-10, citing 4AC ¶¶ 87-90.) Plaintiff also cites to government Code sections 815.2 and 815.4 which impose vicarious liability on EBMUD for the negligence of its employees and independent contractors (but neither statute refers to any specific act or omission which may give rise to liability). Thus, Plaintiff's cause of action appears premised on: (1) a direct claim against EBMUD under section 815.6 for violation of a supposed mandatory duty; and (2) a claim against unnamed employees and contractors for whom EBMUD could have vicarious liability.

Under Government Code section 815.6, a public entity may be liable if it is "under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury." This "mandatory duty" exception to sovereign immunity requires that a statute express its command in "explicit and forceful language." (*In re Groundwater Cases* (2007) 154 Cal.App.4th 659, 689.) The 4AC fails to state a direct claim against EBMUD because Plaintiff does not identify a statute imposing a mandatory duty on EBMUD with respect to the manner in which it handled her claim.

Nor can any unnamed employees or contractors be held liable on Plaintiff's negligence claim because it is predicated existence of a legal duty of care which has not been shown to exist. Employees and

contractors of a public entity have no general duty to protect members of the public such as Plaintiff, and Plaintiff does not plead the existence of a special relationship that might create such a duty. Where alleged employees or contractors would not be directly liable, there is no basis to impose vicarious liability on EBMUD. (Gov. Code, § 815.2; and see Gov. Code § 815.4 [“[n]othing in this section subjects a public entity to liability for the act or omission of an independent contractor if the public entity would not have been liable for the injury had the act or omission been that of an employee of the public entity.”])

In addition, “even when a duty exists, California has enacted specific immunity statutes that, if applicable, prevail over liability provisions.” (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 348; *Towery v. State of Cal.* (2017) 14 Cal.App.5th 226, 233–234 [“any general theory of liability against public entities is subordinate to the specific immunity provision”].) In other words, “[i]f a specific immunity statute applies, it ‘cannot be abrogated by a statute which simply imposes a general legal duty or liability’” (*Caldwell, supra*, 10 Cal.4th at p. 986).” (*Creason v. Dept. of Health Services* (1998) 18 Cal.4th 623, 635.) And, if a public employee is immune, so is the public employer. (Gov. Code, § 815.2 (b).)

Here, EBMUD would appear to be shielded by the immunity in Government Code section 820.2. Under that section, a public employee (and, by operation of section 815.2, subdivision (b), the public employer) is “not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.”

Plaintiff attempts to avoid immunity by suggesting that EBMUD personnel failed to exercise any discretion at all. (See Opp., p. 10.) However, the allegations of the 4AC do not support that framing. For example, Plaintiff does not allege that EBMUD wholly ignored her claim or refused to consider it; instead she challenges the adequacy of the investigation. Allegations that an investigation was insufficient or incomplete necessarily implicate discretionary decision making.

County of Los Angeles v. Superior Court (2012) 209 Cal.App.4th 543 is instructive here. In that case, the plaintiffs argued that the County could have prevented an attack by two dogs if the County had conducted an adequate investigation. The appellate court rejected the plaintiffs’ argument and explained:

Plaintiffs’ argument amounts to a claim that the County did not conduct an adequate investigation. This argument demonstrates the County’s duty was not mandatory because the duty of a public entity is not mandatory if it is debatable whether the duty was adequately fulfilled. (See *de Villers [v. County of San Diego]* (2007) 156 Cal.App.4th 238], pp. 260–261 [“when the statutorily prescribed act involves debatable issues over whether the steps taken by the entity adequately fulfilled its obligation, ... the act necessarily embodies discretionary determinations by the agency regarding how best to fulfill the mandate, and this discretion removes the duty from the type of activity that supports a claim under [Government Code] section 815.6”].)

...

An enactment requiring a public entity to conduct an investigation under certain circumstances does not, without more, impose a mandatory duty to take certain specified action. (See *State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 858 [“The

commissioner's mandatory statutory duty to 'investigate' the Robinson complaint may not reasonably be read as imposing a mandatory duty on the commissioner to take action in the event the commissioner's investigation discloses evidence of wrongdoing.”]; see also *MacDonald v. California* (1991) 230 Cal.App.3d 319, 331 [“[E]xecution of the [statutory] duties to visit day care homes and investigate complaints necessarily involves some exercise of discretion in deciding what action to take, and when, to evaluate and assess a particular situation. A party disagreeing with or harmed by the exercise or nonexercise of such discretion has not explicitly been provided any remedy in damages by the Legislature.”]]

(*County of Los Angeles, supra*, at 554.)

When suing a public entity, a plaintiff is required to plead with particularity every fact essential to statutory liability. (*Lopez v. Southern Cal. Rapid Transit Dist., supra*, 40 Cal.3d at 795-796.) Wittenberg has not cited any provision that imposed a duty on EBMUD or its employees or contractors to take any particular action in its investigation of her December 2019 claim.

Plaintiff’s theory fails for the additional reason that EBMUD never owed Plaintiff a duty to pay her claim. The presentation of a government tort claim is a procedural prerequisite to suit, not a mechanism that creates an obligation to pay compensation at the claim stage. Plaintiff cites no statute, regulation, or authority imposing such a duty, and therefore cannot establish that she suffered legally cognizable damages arising from the alleged negligent claims handling.

C. Statute of Limitations

EBMUD argues that any claim against it seeking recovery for property damage arising from the alleged water main break is barred by the statute of limitations. Under the Government Claims Act, a cause of action accrues on “the date upon which the cause of action would be deemed to have accrued within the meaning of the statute of limitations which would be applicable thereto” if there were no government claim requirement. (Gov. Code, § 901.) A cause of action for property damage accrues when the defendant’s act causes immediate and permanent injury to the property, or when there is actual and appreciable harm. (*Siegel v. Anderson Homes, Inc.* (2004) 118 Cal.App.4th 994, 1005.)

Applying those principles, EBMUD contends that Plaintiff’s cause of action for property damage accrued in December 2019, when Plaintiff alleges she became aware of water entering her property and submitted a government claim to EBMUD on December 30, 2019. (Gov. Code, § 901.) EBMUD further asserts that, under Government Code section 912.4, the claim was deemed rejected by operation of law when the District did not act on it within 45 days, as Plaintiff alleges occurred here. (4AC ¶ 88.) Where no written notice of rejection is given, an action against a public entity must be filed within two years of accrual. (Gov. Code, § 945.6(a)(2).) On that basis, EBMUD maintains that any cause of action seeking recovery for property damage was required to be filed no later than June 2022 and is therefore time-barred.

Plaintiff alleges that her government claim “remains open and active, and/or should be open and active.” (4AC ¶ 22.) This contradicts the allegation at paragraph 88 that EBMUD closed Plaintiff’s claim without notice to her. As EBMUD points out, Government Code section 912.4 states that a public entity has 45 days to grant or deny a claim, or the claim is deemed rejected by operation of law. (Gov.

Code, § 912.4(c).) Plaintiff does not allege any basis to extend the period within which EBMUD was required to act on her claim. Thus, Plaintiff's assertion that her property damage claim is or should be open is contrary to law.

To the extent Plaintiff's claim could be construed as seeking recovery based on EBMUD's negligence in managing the conditions that resulted in property damage, such a claim would be time-barred for the reason stated above. However, the statute of limitations issue is not dispositive here because Plaintiff has not framed her ninth cause of action as one seeking recovery for negligence in managing EBMUD's property. Instead, she claims that EBMUD is liable for negligently handling her government claim.

In reply, EBMUD relies on *Slater v. Blackwood* (1975) 15 Cal.3d 791 to argue the ninth cause of action is merely a new legal theory for the same 2019 property damage. It is. But *Slater* addressed claim preclusion following a final judgment, not whether a plaintiff may assert a different theory of liability in the absence of a prior adjudication on the merits. Here, there has been no judgment against Plaintiff on a claim against EBMUD, so the issue is not claim splitting but whether the negligent-claims-handling theory states a cognizable cause of action at all. Plaintiff cites no authority recognizing such a cause of action and identifies no statute imposing a duty on a public entity to investigate or pay a claim at the claim-presentation stage.

Moreover, Plaintiff's 4AC fails to state a cause of action against EBMUD under Plaintiff's negligent-claims-handling theory because Plaintiff has not alleged, and it is apparent on the face of the pleading cannot at this stage allege, compliance with the claims presentation requirements under the Government Claims Act in as much as this would be an independent tort which itself would have been subject to such prior presentation. (See Govt. Code § 810 et seq.)

For these reasons, the Court finds that Plaintiff's negligence claim fails matter of law.

IV. Disposition

Based on the foregoing, EBMUD's demurrer is **sustained without leave to amend**. Plaintiff has not identified any manner in which the 4AC could be amended to state a viable cause of action. If Plaintiff contests this ruling, she must appear at the hearing prepared to explain how the pleading could be amended to cure the deficiencies discussed above.

16. 9:00 AM CASE NUMBER: MSC21-02266
CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.
FILED BY:
TENTATIVE RULING:

EBMUD's demurrer to Hacienda Homes, Inc.'s First Amended Cross-Complaint (FAXC) is continued to **February 9, 2026**.

EBMUD demurs to Hacienda's cross-complaint for indemnity, contribution, and declaratory relief on

statute of limitations grounds, contending that Hacienda's claims are untimely. EBMUD asserts that Hacienda presented a government claim for indemnity in January 2023, that the claim was rejected in April 2023, and that Hacienda was therefore required to file any cross-complaint against EBMUD by October 2023. According to EBMUD, Hacienda's later-filed cross-complaint is time-barred.

In opposition, Hacienda argues that its FAXC seeks indemnity for potential liability arising from a newly identified theory of negligence; namely, the alleged negligent handling of Plaintiff's government claim based on testimony elicited at the September 2024 deposition of EBMUD's representative. Hacienda contends that, because its indemnity claims are premised on this theory, the statute of limitations does not bar the claims.

Because Hacienda's opposition frames its claims as contingent on Plaintiff's ability to state a viable claim against EBMUD for negligent claims handling, the Court finds that it is appropriate to defer ruling on EBMUD's demurrer to the FAXC pending resolution of EBMUD's demurrer Plaintiff's operative complaint.

If Plaintiff is unable to state a viable claim against EBMUD, Hacienda's cross-claims may be moot. If Plaintiff is granted leave to amend and files an amended pleading asserting claims against EBMUD, the Court may revisit EBMUD's demurrer to the cross-complaint at that time.

If Plaintiff contests the tentative ruling on EBMUD's demurrer to the 4AC, Hacienda should be prepared to appear, as the disposition of that demurrer may affect the continued demurrer to the cross-complaint.

17. 9:00 AM CASE NUMBER: N23-1456

CASE NAME: PETITION OF: CURIA GLOBAL, INC.

***HEARING ON MOTION IN RE: SEAL EVIDENCE SUBMITTED IN SUPPORT OF PETITIONERS MOTION TO AMEND JUDGMENT**

FILED BY: VAXANIX BIO, LTD.

TENTATIVE RULING:

Third parties Vaxanix Bio, Ltd. and Vaxanix Bio Acquisition Corp. II (the "Vaxanix Parties") filed a Motion to Seal Evidence Submitted in Support of Petitioner's Motion to Amend Judgment on November 13, 2025 (the "Motion to Seal"). The Motion to Seal was set for hearing on January 12, 2025. The motion is unopposed.

Background

The Court entered its Amended Judgment herein on May 28, 2024 (the "Judgment"), confirming an arbitration award in favor of petitioner Curia Global, Inc. ("Curia") as against the named respondent ("BryoLogyx").

On November 4, 2025, Curia filed a motion to amend the Judgment to add the Vaxanix Parties as "Judgment Debtors by Succession." See Notice of Motion and Motion to Amend Judgment filed November 4, 2025 (the "Motion to Amend Judgment"). The Motion to Amend Judgment is presently set

for hearing on March 23, 2026.

This motion seeks to seal certain portions of the Motion to Amend Judgment.

A prior motion to seal by Curia was denied by the Court in October 2025 in connection with a previous motion to amend the Judgment. See Minute Order dated October 13, 2025 (court declined the sealing of court records requested, finding the request overbroad and lacking in a showing of a specific rationale as to specific information to be sealed).

This more narrowly tailored motion seeks to seal portions of Exhibit A-6 to the Declaration of Richard A. Tilghman IV filed November 4, 2025 (the “Tilghman Declaration”) described as “the Agreement and Plan of Merger between Vaxanix Bio, Vaxanix Acquisition, and BryoLogyx” (the “Record to be Sealed”).

As filed on November 4, 2025, the Tilghman Declaration contained a copy of the Record to be Sealed with a few portions redacted from the public filing.

Analysis

Under the California Rules of Court, “[u]nless confidentiality is required by law, court records are presumed to be open.” Rule 2.550(c) of the California Rules of Court (“CRC”). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The supporting declaration describes that the Vaxanix Parties only seek to seal certain very specific portions of the Record to be Sealed. See Declaration of Mark Germain in Support of Motion to Seal (the “Supporting Declaration”), ¶3 (“The only information that the Vaxanix Entities seek to seal is the percentages of the sublicense fees or royalty payments earned by Vaxanix Acquisition that are passed

on to the BryoLogyx securityholders, which are stated in the Allocation Schedule.”). The Supporting Declaration indicates that this information constitutes sensitive non-public financial and business information whose general disclosure would raise a substantial probability of prejudice to the Vaxanix Parties. *Id.* For ease of reference, this information is referred to as the “Sensitive Non-Public Information.”

The Court finds that there exists an overriding interest that overcomes the right of public access to the specific Sensitive Non-Public Information addressed in the Supporting Declaration. The Court further finds that this overriding interest supports sealing the Sensitive Non-Public Information and there exists a substantial probability that the overriding interest will be prejudiced if the Sensitive Non-Public Information is not sealed. Subject to resolution of the issue discussed below, the Court further finds that the proposed sealing of the Sensitive Non-Public Information is narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

However, the Court must confirm what specific portion(s) of the Record to be Sealed contain such Sensitive Non-Public Information.

The Supporting Declaration refers to the “appendix to the Merger Agreement, titled ‘Allocation Schedule,..’” but does not cite page and line numbers or other clear designations of the specific portions constituting the Sensitive Non-Public Information.

Moreover, there appears to be a disconnect because the Vaxanix Parties indicate that “Petitioner Curia has submitted the Merger Agreement in its entirety with its motion to amend the judgment.” See Supporting Declaration, ¶12.

As noted above, however, the Record to be Sealed appears to have already had various portions redacted, as it was filed on November 4, 2025. It is not clear to the Court whether the Vaxanix Parties concur that those redactions, in fact, redact the portions containing the Sensitive Non-Public Information.

Most of those redactions appear on the “Allocation Schedule” portions (pages 283, 284 and 286 of the Tilghman Declaration and a part of Exhibit A-6). Another redaction appears elsewhere in the document (page 285 of the overall filing pagination). Accordingly, it would appear that the Sensitive Non-Public Information has been redacted out of the Record to be Sealed.

As set forth below, the parties are to appear to confirm that the portions redacted from the Record to be Sealed properly redact the Sensitive Non-Public Information.

Disposition

The Court finds and orders as follows:

1. Parties to Appear.

18. 9:00 AM CASE NUMBER: N25-2269
CASE NAME: PETITION OF: ELAINE LAVAN
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**

FILED BY:

TENTATIVE RULING:

Petitioner Elaine La Van's motion for a preliminary injunction is **denied**.

Petitioner Elaine La Van, individually and doing business as Softtech, filed a petition against the California State Approving Agency for Veterans Education (CSAAVE) for administrative and traditional writ of mandates and for declaratory relief on November 20, 2025. The claims in the petition focus on CSAAVE's handling of Petitioner's applications from 2023 to 2025. Petitioner alleges many violations by CSAAVE, including that CSAAVE imposed requirements without proper justification, manufactured reasons to reject or disapprove of Petitioner's applications, and did not give Petitioner an appeal of its decisions.

Petitioner filed this motion for a preliminary injunction on November 21, 2025. Petitioner is seeking a preliminary injunction that enjoins CSAAVE from (1) enforcing and implementing the administrative decision disapproving Softtech's application for approval to enroll veteran students; (2) taking any further adverse action against Softtech based on the grounds asserted in the proceedings at issue in this case, including but not limited to allegations regarding the "Shopping Sheet," "placement rates," or "independent study"; and (3) refusing to process enrollments for eligible veteran students at Softtech in the same manner as was done prior to the adverse administrative actions at issue in this case. (Proposed Order, attached as pages 71-73 of the petition.)

CSAAVE raises several procedural arguments. They argue that Petitioner filed this action in the wrong county. If CSAAVE believes this action was filed in the wrong county, they are free to bring a motion to have this case removed to another county. (See Code Civ. Proc. § 401.)

Next, CSAAVE argues that there is a 60-day statute of limitations period, citing to *Kao v. Department of Corrections & Rehabilitation* (2016) 244 Cal.App.4th 1326. Kao states that the 60-day rule is "a judicially created rule used presumptively by appellate courts to assess the timeliness of nonstatutory writ petitions seeking discretionary review of trial court decisions. Its purpose is to keep the time period for seeking writ review on par with the time period for seeking appellate review, absent extraordinary circumstances. [Citations.]" (*Kao v. Department of Corrections & Rehabilitation* (2016) 244 Cal.App.4th 1326, 1333.) The Court is not convinced that there is a 60-day statute of limitations for this case.

The Court turns to the merits of Petitioner's motion. "[I]n order to obtain injunctive relief the plaintiff must ordinarily show that the defendant's wrongful acts threaten to cause *irreparable* injuries, ones that cannot be adequately compensated in damages." (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352; Code of Civil Procedure section 526(a).)

"In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. [Citation.]... The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction. [Citation.]... A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. [Citation.]" (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.)

Petitioner has the burden of showing that all elements necessary to support issuance of a preliminary injunction are met. (See *O'Connell v. Superior Court* (2006) 141 Cal. App. 4th 1452,

1481.)

As an initial matter, the Court notes that Petitioner argues this injunction would maintain the status quo. "Injunctions may be either mandatory, in that they compel a party to take an action, or prohibitory, in that they attempt to maintain the status quo by restraining a party from taking action. [Citation.] ""A preliminary mandatory injunction is rarely granted, and is subject to stricter review on appeal."" [Citation.]" (*Itv Gurney Holding v. Gurney* (2017) 18 Cal.App.5th 22, 29.)

Petitioner states she has been approved by CSAAVE from 2010 to 2025 and has been running her school for 25 years. (La Van dec. ¶2.) However, the documents attached to the petition show that CSAAVE suspended programs for new enrollments on September 22, 2023, and disapproved of all programs on December 6, 2023. (Pet. Ex. B and D.) CSAAVE's Assistant Deputy Secretary Iannello states that Petitioner was approved, however, that approval expired on December 31, 2019. (Iannello dec. ¶9-10.) Iannello also states that Petitioner did not submit another application until June 28, 2023, which was returned. (Iannello dec. ¶11.) Petitioner has not provided evidence to dispute these statements by Iannello.

Here, Petitioner has not had an approved application for five years and has not disapproved for two years. While not dispositive in this case, the Court finds that Petitioner's requested injunctive relief is not to maintain the status quo, but instead would be a mandatory injunction.

Petitioner alleges that she is entitled to a hearing under 38 U.S.C. section 3690, subd. (c) and 38 C.F.R. section 21.4259, subd. (b)(2)(ii).

38 U.S.C. § 3690(c) states in part that "the records and accounts of educational institutions pertaining to eligible veterans or eligible persons who received educational assistance under this chapter... shall be available for examination by duly authorized representatives of the Government." Section 3690(c) does not discuss the right to a hearing. Further, the Court did not find language providing for a hearing elsewhere in section 3690.

38 C.F.R. section 21.4259 (b) states that upon suspension or disapproval, the State approving agency or Secretary will notify the educational institution. Subsection (b)(2)(ii) does not provide the right to a hearing nor did the Court find language providing for a hearing elsewhere in section 21.4259.

The sections cited by Petitioner do not show that she was entitled to a hearing from CSAAVE.

Petitioner also argues that CSAAVE's disapproval was arbitrary, capricious and exceeds CSAAVE's statutory authority. In order for Petitioner to prevail on this theory she needs to show that her application should have been approved and further, the CSAAVE's requests for more information or updated forms was an abuse of discretion. Petitioner has provided copies of communications with CSAAVE. Petitioner has not shown, however, that she met all the requirements nor has she shown that CSAAVE's actions were an abuse of discretion.

The Court finds that Petitioner has not shown a probability of prevailing on the merits and as such she is not entitled to a preliminary injunction.

Since Petitioner has not shown a probability of prevailing on the merits, the Court need not consider the balance of harms. (*Butt v. State of California* (1992) 4 Cal.4th at 678 [A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.])

19. 10:00 AM CASE NUMBER: MSC20-02024

CASE NAME: WINANS VS CITY OF BRENTWOOD

JURY TRIAL

FILED BY:

TENTATIVE RULING:

Parties to Appear.

20. 11:00 AM CASE NUMBER: MSC19-02076

CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC

***TRIAL SETTING CONFERENCE**

FILED BY:

TENTATIVE RULING:

Parties to Appear.

21. 11:00 AM CASE NUMBER: MSC19-02076

CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC

***FURTHER CASE MANAGEMENT CONFERENCE TRIAL SETTING CONFERENCE**

FILED BY:

TENTATIVE RULING:

Parties to Appear.

22. 11:01 AM CASE NUMBER: MSC19-02076

CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC

**HEARING ON ORDER TO SHOW CAUSE IN RE: WHY PLAINTIFF HAS NOT PAID HER SHARE OF THE
DISCOVERY REFEREE FEES.**

FILED BY:

TENTATIVE RULING:

Parties to Appear.